Delivery & Documents

Copies of the Supplier's invoice showing Goods' description, quantity, unit price, and total amount;

Original and two copies of the usual transport document (for example, a negotiable bill of lading, a non-negotiable sea waybill, an inland waterway document, an air waybill, a railway consignment note, a road consignment note, or a multimodal transport document) which the buyer may require to take the goods;

Copies of the packing list identifying contents of each package;

Manufacturer's or Supplier's Valid Warranty Certificate;

Inspection Certificate issued by the Nominated Inspection Agency (if any), and the Supplier's Factory Inspection Report;

Certificate of Origin.

The above documents would be required even if the equipment has already been imported and is available with the supplier ex-stock

Number of GC Clause 31

Following is the guidance for Dispute Resolution

i. If any dispute of any kind whatsoever shall arise between the Authority and the Bidder in connection with or arising out of the Contract... (full clause unchanged)

ii. At future of negotiation the dispute shall be resolved through mediation...

iii. At failure of mediation, arbitration under Arbitration Act 1940...

iv. Cost sharing equally...

v. Proceedings may commence before/after completion...

Notwithstanding any reference to the arbitration herein, the parties shall continue to perform their respective obligations under the Contract.

Rules of procedure for arbitration proceedings:

Any dispute between the Authority and a Bidder shall be referred to arbitration under the laws of Pakistan including Arbitration Act 1940.

Place of Arbitration and Award:

The arbitration shall be conducted in English language and place shall be Islamabad. The award shall be final and binding.

Bid Securing Declaration

Form 9: Bid Securing Declaration

Date: *[insert date (as day, month and year)]*

Bid No.:***P82852***

To: **Comsats University, Islamabad (Attock Campus) (Comsats University, Islamabad), Senior Program Officer Comsats University Islamabad, University Road, near Officer Colony, Attock, Attock, Attock (District), Rawalpindi Division (Division), Punjab (Province).**

We, the undersigned, declare that:

We understand that, according to your conditions, Bids must be supported by a Bid Securing Declaration.

We accept that we will be blacklisted and henceforth cross debarred for participating in respective category of public procurement proceedings for a period of (not more than) six months, if fail to abide with a bid securing declaration, however without indulging in corrupt and fraudulent practices, if we are in breach of our obligation(s) under the Bid conditions, because we:

1. have withdrawn or modified our Bid during the period of Bid Validity specified in the Form of Bid;

2. Disagreement to arithmetical correction made to the Bid price; or

3. having been notified of the acceptance of our Bid by the Procuring Agency during the period of Bid Validity, (i) failure to sign the contract if required by Procuring Agency to do so or (ii) fail or refuse to furnish the Performance Security or to comply with any other condition precedent to signing the contract specified in the Bidding Documents.

We understand this Bid Securing Declaration shall expire if we are not the successful

Bidder, upon the earlier of (i) our receipt of your notification to us of the name of the successful Bidder; or (ii) twenty-eight (28) days after the expiration of our Bid.

Contract Form

SECTION IX: CONTRACT FORMS

THIS AGREEMENT made the _____ day of _____ 20_____ between **Comsats University, Islamabad (Attock Campus) (Comsats University, Islamabad), Senior Program Officer Comsats University Islamabad, University Road, near Officer Colony, Attock, Attock, Attock (District), Rawalpindi Division (Division), Punjab (Province).**

(hereinafter called "the Procuring Agency") of the one part and *[name of Bidder]* of *[city and country of Bidder]* (hereinafter called "the Bidder") of the other part:

WHEREAS the Procuring Agency invited Bids for provision of goods, viz., **Supply, Installation, Testing, Commissioning and Operation & Maintenance of 400 kw On grid Solar PV System (*P82852*)** and has accepted a Bids by the Bidder for the provision of Goods in the sum of *[contract price in words and figures]* (hereinafter called "the Contract Price").

NOW THIS CONTRACT WITNESSETH AS FOLLOWS:

1. In this Contract words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.

2. The following documents shall be deemed to form and be read and construed as part of this Contract, In the event of any ambiguity or conflict between the Contract Documents listed below, the order of precedence shall be the order in which the Contract Documents are listed below:-

1. This form of Contract;
2. the Form of Bids and the Price Schedule submitted by the Bidder;
3. the Schedule of Requirements;
4. the Technical Specifications;
5. the Special Conditions of Contract;
6. the General Conditions of the Contract;
7. the Procuring Agency's Letter of Acceptance; and
8. [*add here: any other documents*]

3. In consideration of the payments to be made by the Procuring Agency to the Bidder as hereinafter mentioned, the Bidder hereby covenants with the Procuring Agency to provide the Goods related services and to remedy defects therein in conformity in all respects with the provisions of the Contract.

4. The Procuring Agency hereby covenants to pay the Bidder in consideration of the provision of Goods and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the contract at the times and in the manner prescribed by the contract.

IN WITNESS whereof the parties hereto have caused this Contract to be executed in accordance with their respective laws the day and year first above written.

Signed, sealed, delivered by _____the _____ (for the Procuring Agency)

Witness to the signatures of the Procuring Agency:

……

Signed, sealed, delivered by _____the _____ (for the Procuring Agency)

Witness to the signatures of the Bidder: ……

PUBLIC PROCUREMENT REGULATORY AUTHORITY (PPRA) EPADS

Integrity Pact

Integrity Pact

DECLARATION OF FEES, COMMISSION AND BROKERAGE ETC. PAYABLE BYTHE SUPPLIERS OF GOODS, SERVICES & WORKS IN CONTRACTS WORTH RS.10.00 MILLION OR MORE

Contract Number: Contract Value: Contract Title:

Dated:

[Name of Supplier] hereby declares that it has not obtained or induced the procurement of any contract, right, interest, privilege or other obligation or benefit from Government of Pakistan or any administrative subdivision or agency thereof or any other entity owned or controlled by it (GoP) through any corrupt business practice.

Without limiting the generality of the foregoing [Name of Supplier] represents and warrants that it has fully declared the brokerage, commission, fee etc. paid or payable to anyone and not given or agreed to give and shall not give or agree to give to anyone within or outside Pakistan either directly or indirectly through any natural or juridical person, including its affiliate, agent, associate, broker, consultant, director, promoter, shareholder, sponsor or subsidiary, any commission, gratification, bribe, finder's fee or kickback, whether described as consultations fee or otherwise, with the object of obtaining or inducing the procurement of a contract, right, interest, privilege or other obligation or benefit in whatsoever form from GoP, except that which has been expressly declared pursuant hereto.

[Name of Supplier] certifies that it has made and will make full disclosure of all agreements and arrangements with all persons in respect of or related to the transaction with GoP and has not taken any action or will not take any action to circumvent the above declaration, representative or warranty.

[Name of Supplier] accepts full responsibility and strict liability for making and false declaration, not making full disclosure, misrepresenting fact or taking any action likely to defeat the purpose of this declaration, representation and warranty. It agrees that any contract, right interest, privilege or other obligation or benefit obtained or procured as aforesaid shall, without prejudice to any other right and remedies available to GoP under any law, contract or other instrument, be voidable at the option of GoP.

Notwithstanding any rights and remedies exercised by GoP in this regard, [Name of Supplier] agrees to indemnify GoP for any loss or damage incurred by it on account of its corrupt business practices and further pay compensation to GoP in an amount equivalent to ten time the sum of any commission, gratification, bribe, finder's fee or kickback given by [Name of Supplier] as aforesaid for the purpose of obtaining or inducing the procurement of any contract, right, interest, privilege or other obligation or benefit in whatsoever form from GoP.

Performance Guarantee Form

Performance Guarantee Form

To: **Comsats University, Islamabad (Attock Campus) (Comsats University, Islamabad), Senior Program Officer Comsats University Islamabad, University Road, near Officer Colony, Attock, Attock, Attock (District), Rawalpindi Division (Division), Punjab (Province).**

WHEREAS *[name of Bidder]* (hereinafter called "the Bidder") has undertaken, in pursuance of Contract No. *[reference number of the contract]* dated *[insert date]* for provision of Goods*(*hereinafter called "the Contract").

AND WHEREAS it has been stipulated by you in the said Contract that the Bidder shall furnish you with a Bank Guarantee by a reputable bank for the sum specified therein as security for compliance with the Bidder's performance obligations in accordance with the Contract.

AND WHEREAS we have agreed to give the Bidders guarantee:

THEREFORE, WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Bidder, up to a total of *[amount of the guarantee in words and figures]*, and we undertake to pay you, upon your first written demand declaring the Bidder to be in default under the Contract and without cavil or argument, any sum or sums within the limits of *[amount of guarantee]* as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

This guarantee is valid until the: *[insert date]*

Signature and seal of the Guarantors

_____

[name of bank or financial institution]

_____

[address]

_____

[date}

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Annexure

Diagram

Technical Submission (Vendor)

Document Required

See Form Under Additional Forms and Documents: **Diagram** (page number: 102)

Documents including BOQ

Technical Submission (Vendor)

Document Required

See Form Under Additional Forms and Documents: **Documents including BOQ** (page number: 111)

Procurement Forms

Past Construction Experiences

Please fill and

See Form Under Additional Forms and Documents: **Past Construction Experiences** (page number: 195)

Contractor's Key Personnel Representative and Their Schedules

please fill and submit

See Form Under Additional Forms and Documents: **Contractor's Key Personnel Representative and Their Schedules** (page number: 201)

Financial Resources

please fill and submit

See Form Under Additional Forms and Documents: **Financial Resources** (page number: 205)

Past Experience and Completed Contracts

please fill and submit

See Form Under Additional Forms and Documents: **Past Experience and Completed Contracts** (page number: 206)

Historical Contract Non-Performance, and Pending Litigation and Litigation History

Please fill and submit

See Form Under Additional Forms and Documents: **Historical Contract Non-Performance, and Pending Litigation and Litigation History** (page number: 207)

Current Contracts and Their Progress

Please fill and submit

See Form Under Additional Forms and Documents: **Current Contracts and Their Progress** (page number: 209)

Financial Capacity and Net Worth Evaluation Form

Please fill and submit

See Form Under Additional Forms and Documents: **Financial Capacity and Net Worth Evaluation Form** (page number: 210)

Average Annual Turnover

Please fill and submit

See Form Under Additional Forms and Documents: **Average Annual Turnover** (page number: 212)

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PUBLIC PROCUREMENT REGULATORY AUTHORITY
(PPRA)
EPADS

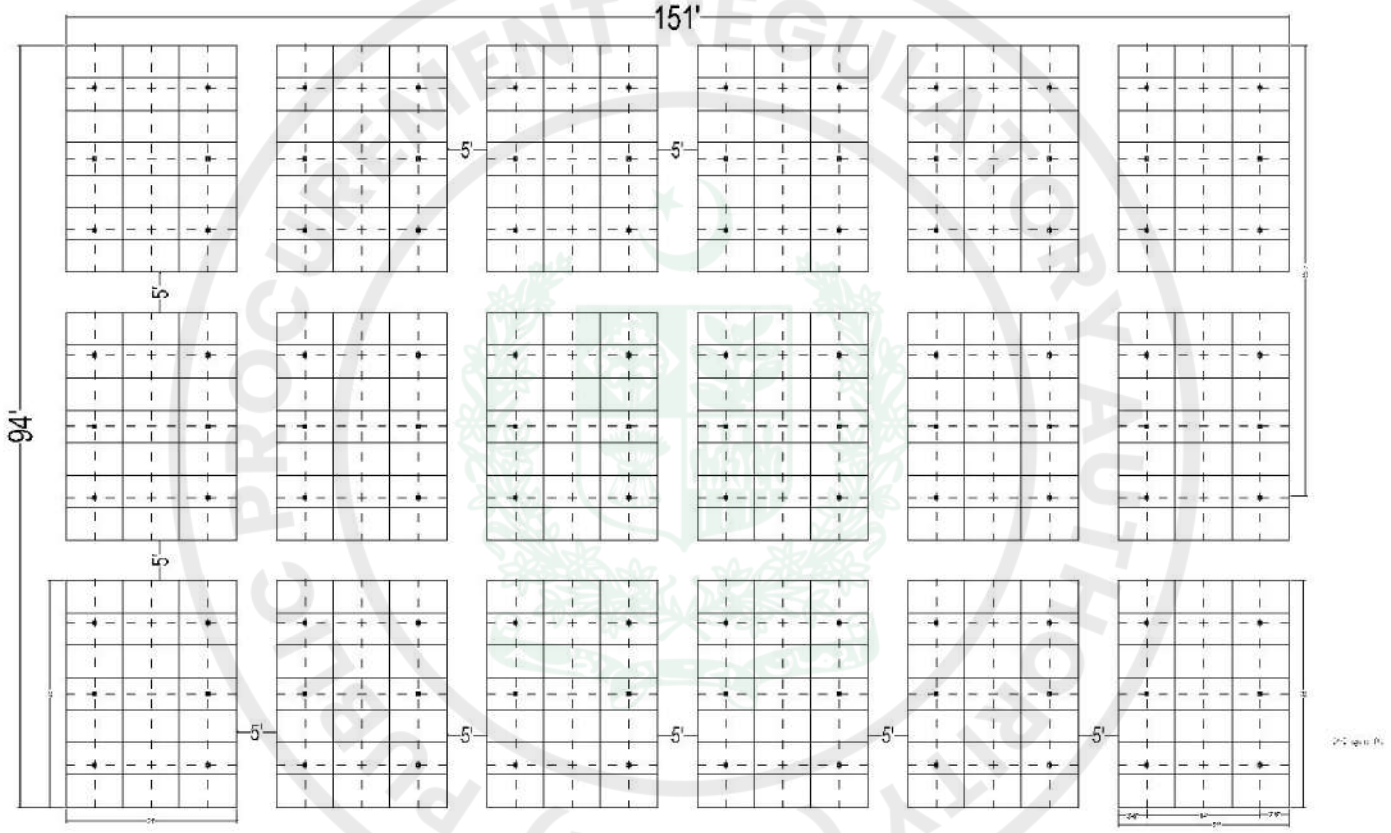
Additional Forms and Documents

Drawing # 1

Plan

700W PV Panel (378 Nos)

(10440 Squar ft PV Panel Area)



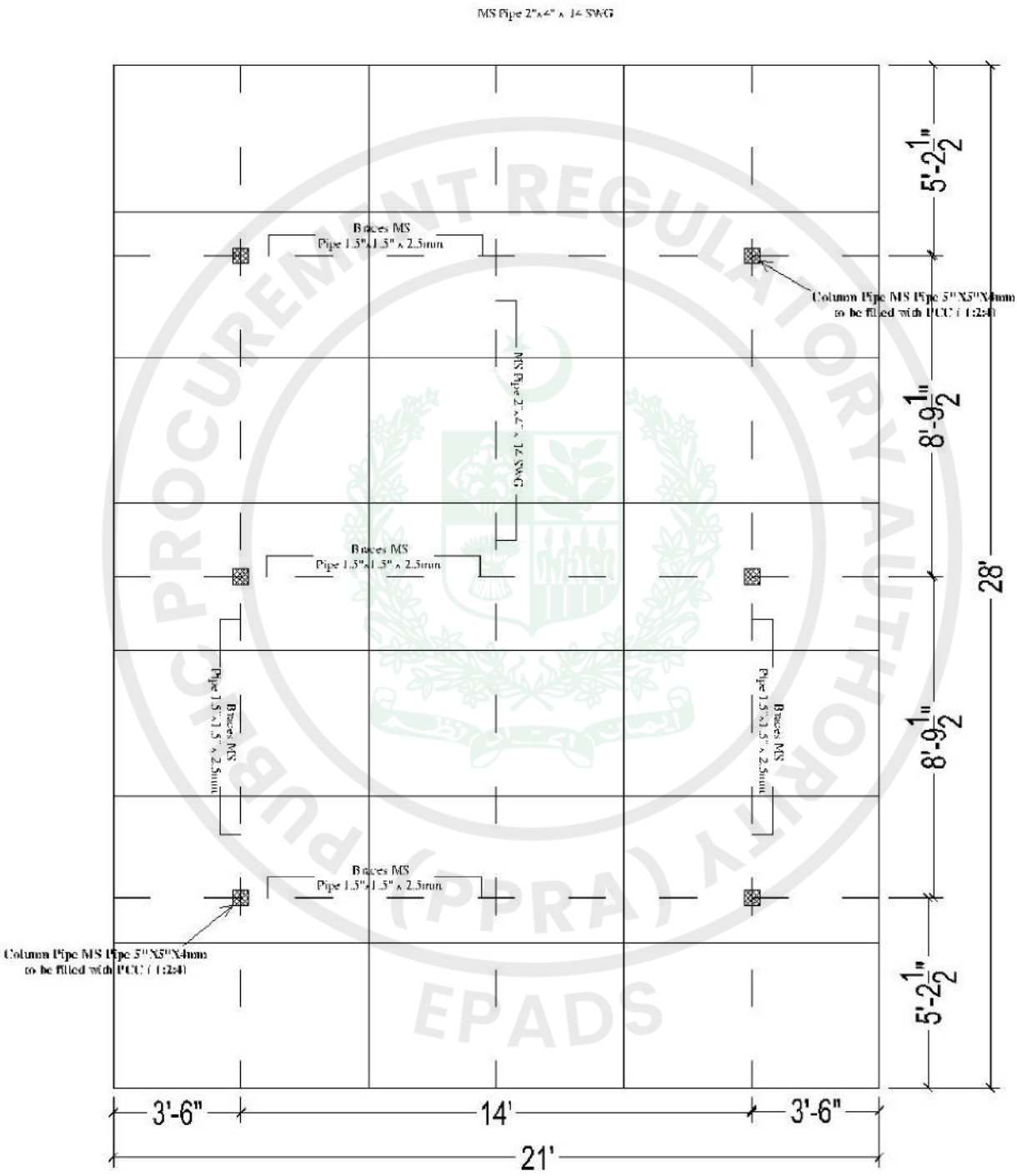
COMSATS University Islamabad Attock Campus

Mathematics and ECE Block

700W PV Panel (21 Nos)

Drawing # 2

Plan

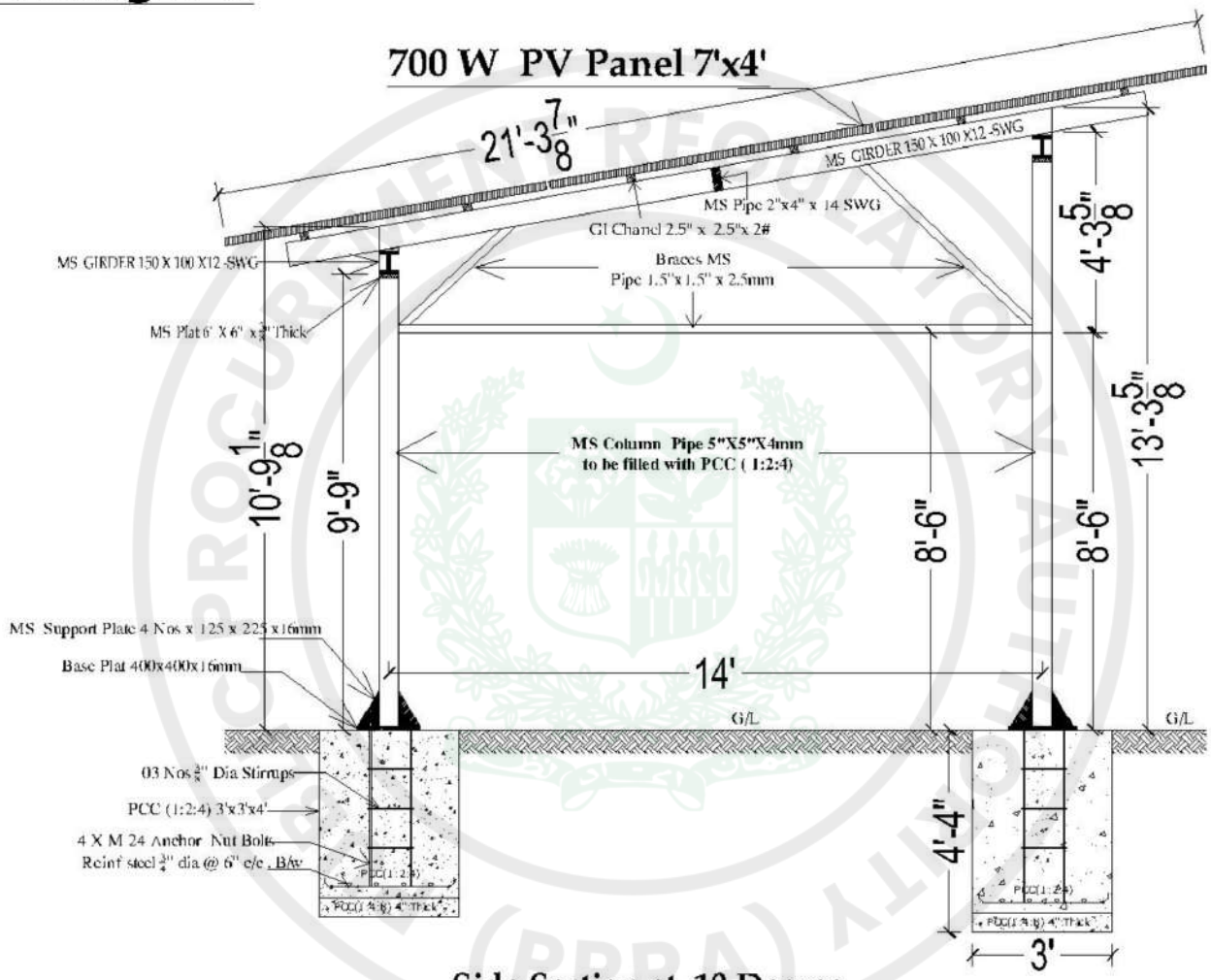


COMSATS University Islamabad Attock Campus
ECE & Math Blocks

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Drawing # 3

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Side Section at 10 Degree

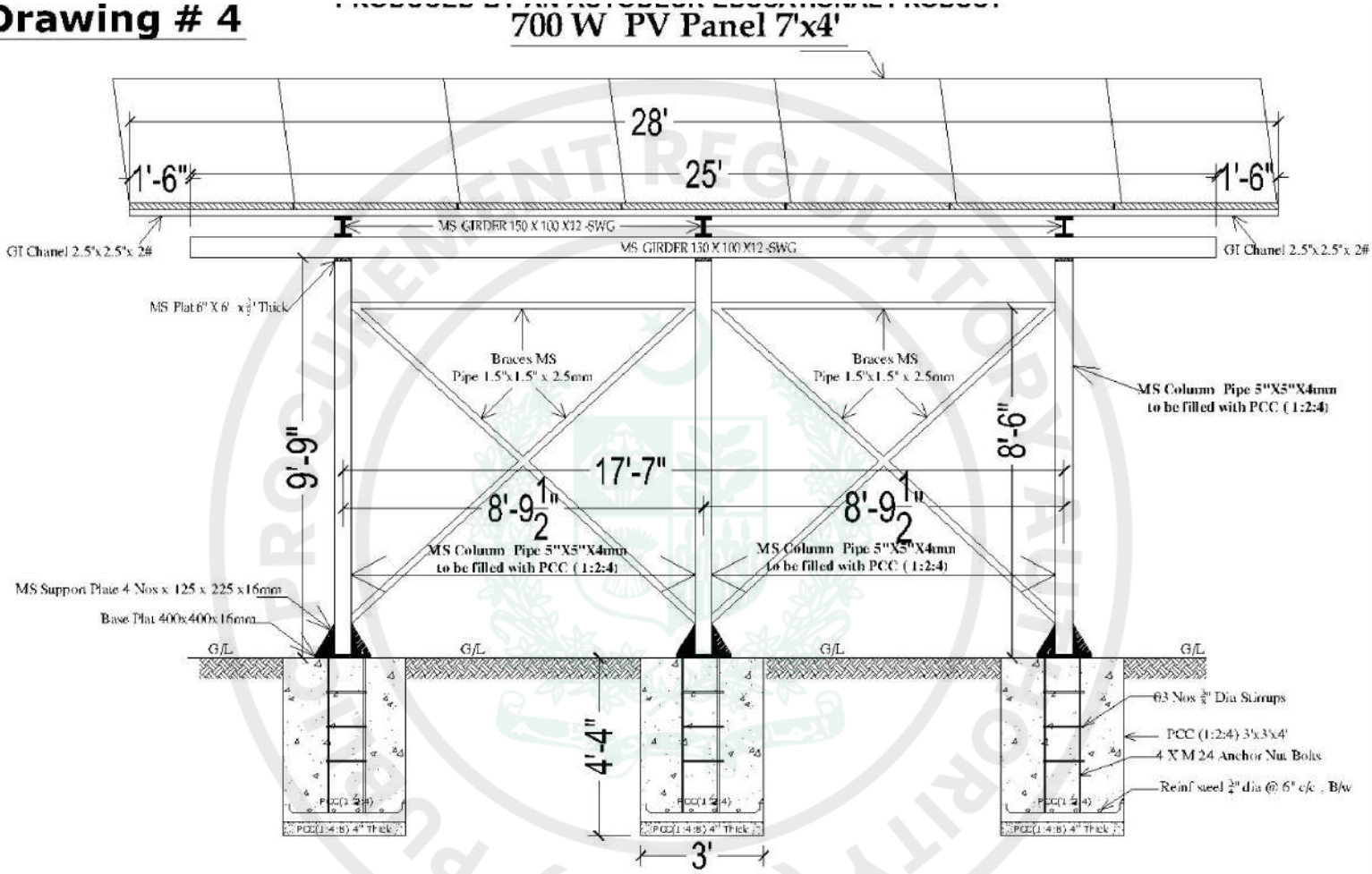
1- All MS sections will be welded properly

2- Two Coats of Enamel paint and one coat of red oxide will be applied before, as recommended

COMSATS University Islamabad Attock Campus

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Drawing # 4

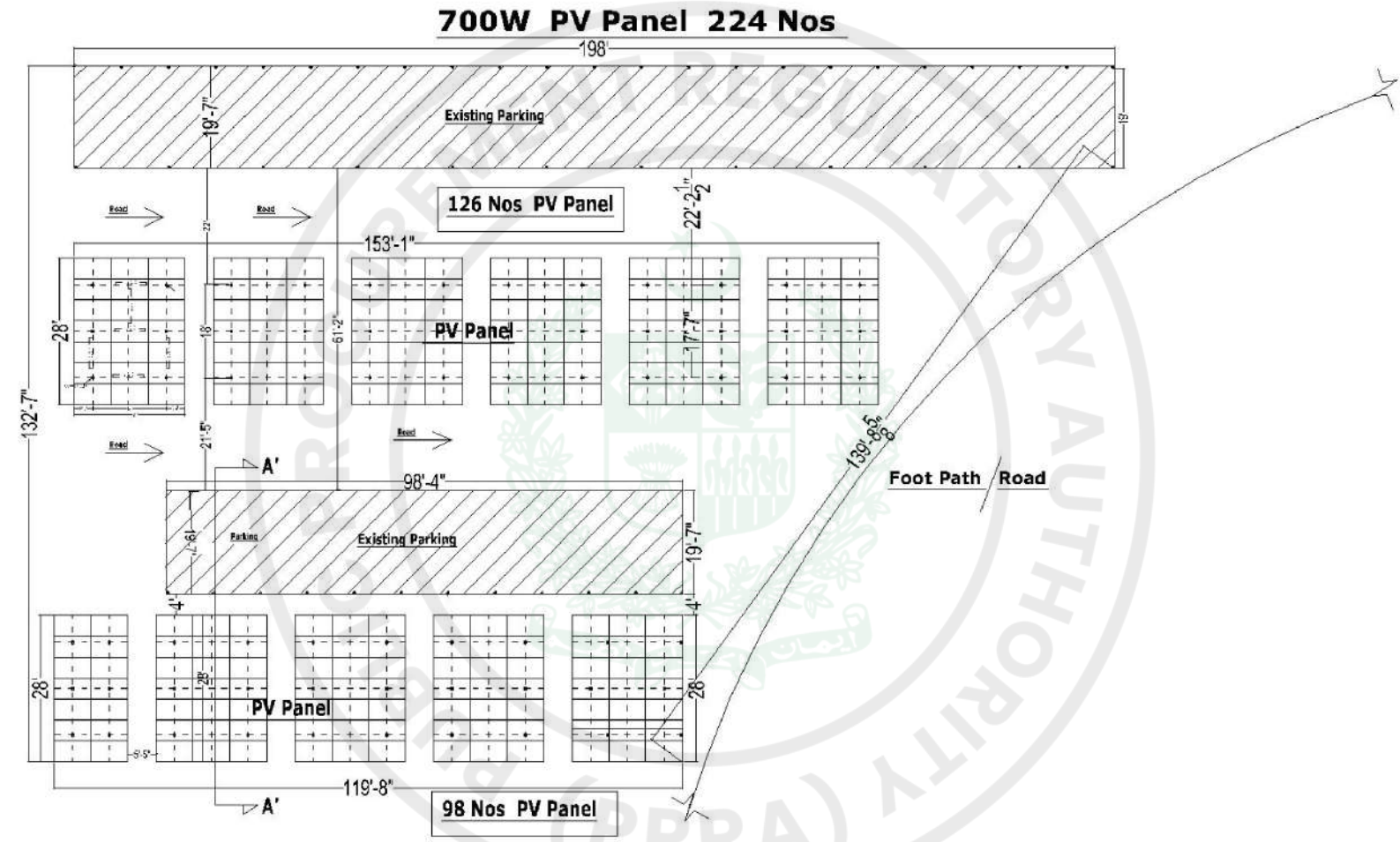


Front Elevation / Section

1- All MS sections will be welded properly

2- Two Coats of Enamel paint and one coat of red oxide will be applied before, as recommended

COMSATS University Islamabad Attock Campus

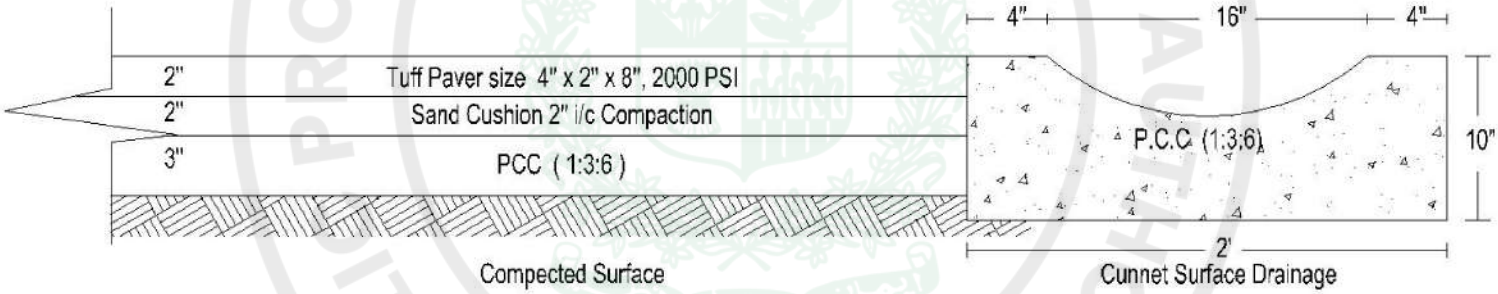


COMSATS University Islamabad Attock Campus
Computer Science Block

PRODUCED BY AN AUTODESK EDUCATIONAL PRODUCT

Drawing # 5

Section

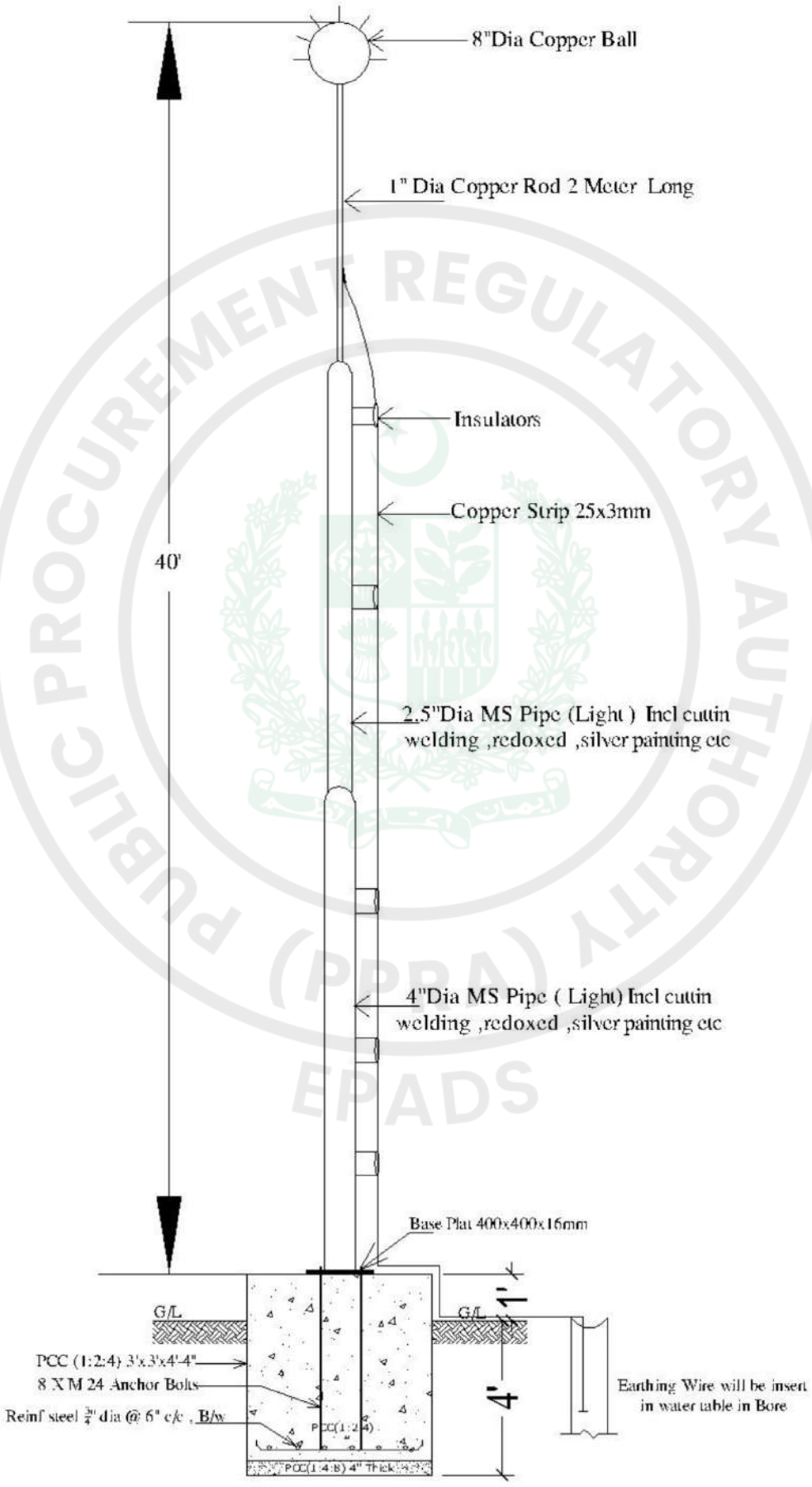


COMSATS University Islamabad Attock Campus

Compected Surface & Cunnet Surface Drainage

PROCUREMENT REGULATORY AUTHORITY (PPRA) EPADS

RCC Structure for Lightning Arrestor



PUBLIC PROCUREMENT REGULATORY AUTHORITY (PPRA) EPADS

LIST OF APPROVED MANUFACTURERS

Sr.No	Description of Items	Approved Manufacturers
1	Inverter	Goodwe Sineng Huawei Nitrox Fronus or equivalent as approved by the Employer/Engineer
2	PV Panel	Canadian JinKo Inverax Longi JA or Equivalent as approved by the Employer/Engineer
3	Clipsal Breaker Box ,AC Fuses , DC Cable Circuit brakers, Auto changeover switch and DC Fuses//Breakers	ABB Schneider Siemens or equivalent as approved by the Employer/Engineer
4	Cable	M/s Pakistan cables M/s Fast cables M/s New age or equivalent as approved by the Employer/Engineer

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The following technical data but not limited to shall be provided wherever applicable for, such as inverter, charge controller, batteries

Sr.No.	**Characteristic**
1.	Manufacturer Name & Country of Manufacturing
2.	Type/Model number/Date of Manufacture
3.	Datasheet
4.	Certifications
5.	Warranties
6.	Installation Guide
7.	Operation Manual

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INSTRUCTIONS TO BIDDERS

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INSTRUCTIONS TO BIDDERS

(Note: These Instructions to Bidders along with Bidding Data will not be part of the Contract and will cease to have effect once the contract is signed.)

A. GENERAL

IB.1 Scope of Bid

1.1 The **Employer** (as defined in the Bidding Data) wishes to receive bids for the Design, Supply, Installation, Testing, Commissioning& O&M of net-metering based solar PV system as described in these Bidding Documents and summarized in the Bidding Data hereinafter referred to as the "**Works**".

1.2 The Successful Bidder will be expected to complete the Works within the time specified in Appendix-A to the Bid.

IB.2 Source of Funds

2.1 The Employer has available to it sufficient resources / funds to completely finance the supply, construction and completion of the Works.

IB.3 Eligible Bidders

3 Basic Eligibility Criteria

3.1 This Invitation for Bids is open to all bidders meeting the following requirements:

a) registered with Income Tax and Sales Tax Departments and who are on Active Taxpayers List of Federal Board of Revenue,

b) valid registrations with the Securities and Exchange Commission of Pakistan (SECP),

c) Registration with Pakistan Engineering Council (PEC) in C5 or above Category with relevant codes e.g. (EE04, EE06, EE11) If an international firm is desirous of getting participation then proof of their affiliation/registration from their respective country's legal and professional body shall have to be provided. However, the international firm shall submit JV / Consortium agreement with local partner(s) having a PEC license of C5 or above category (a copy of the certificates must be attached). The JV Agreement must be provided on a Stamp Paper.

d) The interested firms/ companies must have completed at least Five (05) solar projects and each equal to or more than 400KW solar PV capacity out of which 3 should not be less than 200 kW and 02 should not be less than 400 kW during the last five (05) years in Pakistan. (Project Completion Certificate/reference documents issued by Client must be attached along with Client contact numbers).

e) not having been debarred/ blacklisted by the Employer, Government/Semi Government/Public Departments, a foreign country, international organization or other foreign institutions.

f) Audit Report (s) duly certified by a Chartered Accountant Firm for the last three (03) years. Average turnover of Rs. 100 Million or above for the last three years (2022-2023, 2023- 2024, 2024-25)

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All the Applicants have to fulfill the requirements mentioned in this sub-Clause 3.1(a to f) to elevated further for Technical Elevation.

3.2 Mandatory Criteria

Credit Marks for experience shall be awarded on the basis of the following qualifications:

Sr#	Category	Weightage/Marks
1.	General Experience	40
2.	Personnel Capabilities	20
3.	Equipment and Plant Capabilities	05
4.	Financial Soundness	30
5.	Logistics and Project Management Capacities	05
	Total:	**100**

Note: Technical Evaluation status shall be decided on the basis of Pass/Fail basis. The applicant must secure at least **70%** overall score and must secure at least **60 %** in each individual aforementioned category. All bids should be properly tagged and bound.

3.3 General Experience

Sr. No.	Salient Feature	Maximum Marks
1.	**General Experience (Total Marks 40)** **Note:** Applicants must score at least 60 % in this Category.	
a)	Projects of similar nature completed over the last five (05)years (Work Order and Completion Certificate must be provided by the Client) **Marks distribution** **Total 05 Projects** 02 projects, each equal to or more than 400 kW solar PV capacity within Pakistan or abroad. 03 projects, each equal to or more than 200 kW solar PVcapacity within Pakistan or abroad.	30
	Note: A project having a capacity of less than 400 kW and 200 kw will be awarded zero marks. 01 project of 400 kw have Number (7.5) 01 project of 200 kw have Number (5)	
b)	Projects of similar nature in hand (Work Order/LOA / Contract Agreement evidence of work in hand must be provided) Marks distribution 02 projects equal to or more than 200 kW solar PV capacity within Pakistan or abroad. (5 marks for each project) Note: A project having capacity of less than 200 kW will be awarded zero marks.	10
	Sub-Total	40

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3.4 Personnel Capabilities

Sr#	Salient Feature	Maximum Marks
3.	**Personnel Capabilities (Total Marks 20)** (*Attach copies of CVs along with Non-Judicial affidavit stating the availability of Engineers for the project)* **Note:** Applicants must score at least 60 % in this Category.	
i)	Qualified Graduate Engineers	
(a)	Number of Engineers **Marks distribution** • 5 marks will be given if the total No. of Engineers is five (05)or above. • For less than five (05) Engineers, marks will be given as perthe following formula: = (A/5) × 5 A = No. of Engineers BSc Engineer (PEC Registration with minimum One (01) YearExperience)	05
(b)	Experience of Engineers in a number of years **Marks distribution** • 5 marks will be given if the Applicant has at least five (5) Engineering graduates having at least five (05) years ofrelevant experience.	05
	• For less than 5 No. of Engineers having at least five (05) years of relevant experience, marks will be given as per the following formulas: = (A/5) × 5 A = No. of Engineers having at least five (05) years of relevant experience. Note: Salary Slips of Engineers for the last three (03) months are to be provided.	
ii	Number of Diploma Engineers/ Technicians in the employment of the Firm	
(a)	Number of diploma engineers/technicians **Marks distribution** • 5 marks will be given if the total number of Diploma of Associate Engineers (DAE)/ B Tech are five (05) or above. • For less than five (05) Diploma of Associate Engineers,marks will be given as per the following formula: = (A/5) × 5 A = No. of DAEs/B-Tech **Note:** Salary Slips of DAE's for the last three (03) months are tobe provided.	05

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(b)	Experience of diploma engineers/ technicians in number ofyears. **Marks distribution** • 5marks will be given if the individual experience of at least five (05) No. of DAEs/ B Tech is equal to 4 years or above relevant experience. • For less than five (5) No. of DAEs/ B Tech having individual experience of four (4) years, marks will be givenas per the following formula: = (A/5) × 5 A = No. of DAEs/ B Tech having individual experience of four (04) years or above relevant experience.	05
	Sub-Total	**20**

3.5 Equipment and Plant Capabilities

Sr#	Salient Feature	Maximum Marks
4.	**Equipment Capability (Total Marks 05)** **Note: Applicants must score at least 60 % in this Category.**	
a)	PV Analyzer	01
b)	GPS Meter	01
c)	Megger / Earth Resistance Tester	01
d)	AC/DC Clamp Meter	01
e)	Irradiance Meter	01
	Sub-Total	**05**

3.6 Financial Soundness

Sr#	Salient Feature	Maximum Marks
6.	**Financial Position (Total Marks 30)** **Note: Applicants must score at least 60 % in this Category.**	
i)	Working Capital = Current Assets – Current Liabilities (Average of Certified Audit Reports of Last 3 years)	

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	Marks distribution • 15 marks will be given if the available average working capital for the last three years or available bank credit line limit is equal to 60 Million PKR or above For a limit less than 60 Million PKR, the following weightage will be applied: 15 x (A/200) • A= Average Working Capital for the last three years OR Available Bank Credit Line Limit	15
ii)	Annual Turnover (Certified Audit Reports of Last 3 years)	
	Marks distribution • 15 marks to be given if the available average annual turnover for the last three years is equal to 100 Million PKR or above. • For turnover less than 100 million PKR, the following weightage will be applied: 15 x (A/500) A= Average Annual Turnover in last three (03) years	15
	Sub-Total	**30**

Note: Evaluation of Technical Bids will be carried out on a PASS/FAIL basis in accordance with the above requirements. The Bidder qualifying the above mandatory criteria will be declared Technically Qualified. Financial Bids of only technically qualified bidders will be opened.

Financial Bids of Not-Qualified bidders will be returned un-opened.

3.7 Logistics and Project Management Capacities

S#	**Salient Feature**	**Maximum Marks**
5	**Logistics and Project Management Capacities (Total Marks 05) Note: Applicants must score at least 60 % in this Category.**	05
a)	01 CV of Project Management Leader / Project Management (Master Degree in Engineering Electrical / Mechanical) with minimum experience of ten (10) years for implementing projects of similar nature (01 personnel) i. PEC Registration Certificate should be attached. ii. Qualification and Experience carry 60% Marks each	05
	Sub-Total	**05**

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IB.4 One Bid per Bidder

4.1 Each bidder shall submit only one bid either by himself, or as a partner in a Joint Venture. A bidder who submits or participates in more than one bid (other than alternatives pursuant to Clause IB.16) will be disqualified.

IB.5 Cost of Bidding

5.1 The bidders shall bear all costs associated with the preparation and submission of their respective bids and the Employer will in no case be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.

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IB.6 Site Visit

6.1 The bidders may visit and examine the Site of Works and its surroundings and obtain for themselves on their own responsibility all information that may be necessary for preparing the bid and entering into a contract for the Works. All cost in this respect shall be at the bidder's own expense.

6.2 The bidders and any of their personnel or agents will be granted permission by the Employer to enter upon its premises and lands for the purpose of such inspection, but only upon the express condition that the bidders, their personnel and agents, will release and indemnify the Employer, his personnel and agents from and against all liability in respect thereof and will be responsible for death or personal injury, loss of or damage to property and any other loss, damage, costs and expenses incurred as a result of such inspection.

B. BIDDING DOCUMENTS

IB.7 Contents of Bidding Documents

7.1 The Bidding Documents, in addition to invitation for bids, are those stated below and should be read in conjunction with any Addenda issued in accordance with Clause IB.9.

1. Instructions to Bidders;
2. Bidding Data;
3. Letters of Technical Bid & Price Bid;
4. Appendices to Bid;
5. Conditions of Contract;
6. Contract Data;
7. Form of Bid Security;
8. Letter of Acceptance;
9. Form of Performance Security;
10. Form of Advance Payment Guarantee;
11. Form of Contract Agreement;
12. Specifications & Employer Design.

7.2 The bidders are expected to examine carefully the contents of all the above Bidding Documents. Failure to comply with the requirements of bid submission will be at the Bidder's own risk. Pursuant to Clause IB.26, bids which are not substantially responsive to the requirements of the Bidding Documents will be rejected.

IB.8 Clarification of Bidding Documents

8.1 Any prospective bidder requiring any clarification(s) in respect of the Bidding Documents may notify the Employer in writing at the Employer's address indicated in the Invitation for Bids. **The Employer will respond to any request for clarification which he receives at least five (5) days prior to the deadline for submission of bids.**

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8.2 Copies of the Employer's response will be forwarded to all purchasers of the Bidding Documents, including a description of the enquiry but without identifying its source.

IB.9 Amendment of Bidding Documents

9.1 At any time prior to the deadline for submission of bids, the Employer may, for any reason, whether at his own initiative or in response to a clarification requested by a prospective bidder, modify the Bidding Documents by issuing addendum.

9.2 Any addendum thus issued shall be part of the Bidding Documents pursuant to Sub-Clause 7.1 hereof and shall be communicated in writing to all purchasers of the Bidding Documents. Prospective bidders shall acknowledge receipt of each addendum in writing to the Employer.

9.3 To afford prospective bidders reasonable time in which to take an addendum into account in preparing their bids, the Employer may extend the deadline for submission of bids in accordance with Clause IB.20

C. PREPARATION OF BIDS

IB.10 Language of Bid

10.1 The bid and all correspondence and documents related to the bid exchanged by a bidder and the Employer shall be in the bid language stipulated in the Bidding Data and particular Conditions of Contract. Supporting documents and printed literature furnished by the bidders may be in any other language provided the same are accompanied by an accurate translation of the relevant parts in the bid language, in which case, for purposes of evaluation of the bid, the translation in bid language shall prevail.

IB.11 Documents Comprising the Bid

11.1 **The Bid shall comprise two envelopes submitted simultaneously, one called the Technical Bid and the other Price Bid, containing the documents listed in Bidding Data under the heading of 11.1 A & B respectively. Both envelopes to be enclosed together in an outer single envelope called the Bid. Each bidder shall furnish all the documents as specified in Bidding Data at 11.1 A & B.**

11.2 Bids submitted by a Joint Venture (JV) shall include a copy of the JV Agreement entered into by all partners. Alternatively, a letter of intent to execute a JV Agreement in the event of a successful bid shall be signed by all partners and submitted with the bid, together with a copy of the proposed agreement. The role to be played by each partner to be specified therein. Bids submitted by a JV of two (2) or more firms shall comply with the following requirements:

(a) In case of successful bid, the form of JV Agreement shall be signed and be registered

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as per law so as to be legally binding on all partners within four (4) days of the receipt of Letter of Acceptance;.

(b) One of the JV partners shall be nominated as being in charge that must be registered with Pakistan Engineering Council and this Authorization shall be evidenced by submitting a power of attorney signed by legally authorized signatories of all the JV partners. In case of a company submitting chain of Authority including board resolution to this effect or any authorization required under the law shall be mandatory;

(c) The partner-in-charge shall always be duly authorized to deal with the Employer regarding all matters related with and/or incidental to the execution of Works as per the terms and conditions of JV Agreement and in this regard to incur any and all liabilities, receive instructions, give binding undertakings and receive payments on behalf of the JV;

(d) All partners of the JV shall at all times and under all circumstances be liable jointly and severally for the execution of the Contract in accordance with the Contract terms and a statement to this effect shall be included in the authorization mentioned under Sub-Para (b) above as well as in the Letters of Bid and in the Form of JV Agreement (in case of a successful bid); and

(e) A copy of JV Agreement shall be submitted before signing of the Contract, stating the conditions under which JV will function, its period of duration, the persons authorized to represent and obligate it and which persons will be directly responsible for due performance of the Contract and can give valid receipts on behalf of the JV, and any other information necessary to permit a full appraisal of its functioning. The JV agreement shall be deemed part of the Contract. No amendments/modifications whatsoever in the JV agreement shall be agreed to between the JV partners without prior written consent of the Employer.

11.3 The Bidder shall furnish, as part of the Technical Bid, a Technical Proposal including a statement of work methods, equipment, personnel, schedule and any other information as stipulated in the Bidding Forms, in sufficient detail to demonstrate the adequacy of Bidders' proposal to meet the Works requirements and the completion time referred to in Sub-Clause 1.2 hereof.

IB.12 Bid Prices

12.1 Unless stated otherwise in the Bidding Documents, the Contract shall be for the whole of the Works as described in Sub-Clause 1.1 hereof, based on actual works done basis price. **The criteria for evaluation of bids are provided in the Bidding Data.**

12.2 All duties, taxes and other levies payable by the Contractor under the Contract, or for any other cause shall be included in the rates and prices and the total Bid Price submitted by a bidder. After the date of bid submission deadline, any

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additional / reduced duties, taxes and levies due to subsequent additions or changes in legislation shall be reimbursed / deducted.

IB.13 Currencies of Bid and Payment

13.1 The price of the Works shall be quoted by the bidders entirely in Pak rupees.

IB.14 Bid Validity

14.1 Bids shall remain valid for the period stipulated in the Bidding Data after the Date of Bid Opening specified in Clause IB.23.

14.2 In exceptional circumstances, prior to expiry of the original bid validity period, the Employer may request that the bidders extend the period of validity for a specified additional period which shall in no case be more than the original bid validity period. The request and the responses thereto shall be made in writing. A bidder may refuse the request without forfeiting his Bid Security. A bidder agreeing to the request will not be required or permitted to modify his bid, but will be required to extend the validity of his Bid Security for the period of the extension, and in compliance with Clause IB.15 in all respects.

IB.15 Bid Security

15.1 Each bidder shall furnish, as part of his bid, a Bid Security in the amount stipulated in the Bidding Data in Pak Rupees.

15.2 The Bid Security shall be, at the option of the bidder, in the form of Demand Draft, Call Deposit Receipt, Pay Order or a Bank Guarantee issued by a Scheduled Bank in Pakistan in favour Deputy Treasurer of CUI Attock Campus of and acceptable to the Employer valid for a period thirty (30) days beyond the Bid Validity date.

15.3 Any bid not accompanied by an acceptable Bid Security shall be rejected by the Employers non-responsive.

15.4 The bid securities of unsuccessful bidders will be returned as promptly as possible, but not later than fifteen (15) days after the expiration of the period of Bid Validity or after the signing of the agreement.

15.5 The Bid Security of the Successful Bidder will be returned when the bidder has furnished the required Performance Security and signed the Contract.

15.6 The Bid Security may be forfeited:

(a) If the bidder withdraws his bid except as provided in Sub-Clause 22.1;
(b) If the bidder does not accept the correction of his Bid Price pursuant to Sub-Clause 27.2 hereof; or
(c) In case of Successful Bidder, if he fails within the specified time limit to:
    (i) Furnish the required Performance Security; or

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(ii) Sign the Contract.
(iii) Furnish the required JV agreement within four (4) Days of the receipt of Letter of Acceptance.

IB.16 Alternate Proposal by Bidder

16.1 Should any bidder consider that he can offer any advantages to the Employer by a modification to the specifications or other conditions, he may, in addition to his bid to be submitted in strict compliance with the Bidding Documents, submit any Alternate Proposal(s) containing (a) relevant design specifications/calculations; (b) technical specifications; (c) proposed construction methodology; and (d) any other relevant details / conditions, provided always that the total sum entered on the Form of Bid shall be that which represents complete compliance with the Bidding Documents. The technical details and financial implications involved are to be submitted in two separate sealed envelopes as to be followed in main bid proposals.

16.2 Alternate Proposal(s), if any, of the lowest evaluated responsive bidder in sole discretion of the Employer may only be considered by the Employers the basis for the award of Contract to such bidder.

IB.17 Pre-Bid Meeting

17.1 The Employer may, on his own motion/discretion or at the request of any prospective bidder(s), hold a pre-bid meeting to clarify issues and to answer any questions on matters related to the Bidding Documents. The date, time and venue of pre-bid meeting is as stipulated in the Bidding Data. All prospective bidders or their authorized representatives shall be invited to attend such a pre-bid meeting.

17.2 The bidders are requested to submit questions, if any, in writing so as to reach the Employer not later than three (3) days before the proposed pre-bid meeting.

17.3 Minutes of the pre-bid meeting, including the text of the questions raised and the replies given will be transmitted without delay to all purchasers of the Bidding Documents. Any modification of the Bidding Documents listed in Sub-Clause 7.1 hereof which may become necessary as a result of the pre-bid meeting shall be made by the Employer exclusively through the issue of an Addendum pursuant to Clause IB.9 and not through the minutes of the pre-bid meeting.

17.4 Absence at the pre-bid meeting will not be a cause for disqualification of a bidder.

IB.18 Format and Signing of Bid

18.1 Bidders are particularly directed that the amount entered on the Form of Bid shall be for performing the Contract strictly in accordance with the Bidding Documents.

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18.2 All appendices to Bid are to be properly completed and signed.

18.3 **No alteration is to be made in the Letters of Bid nor in the Appendices thereto except in filling up the blanks as directed. If any such alterations be made or if these instructions be not fully complied with, the bid may be rejected.**

18.4 Each bidder shall prepare by filling out the forms completely and without alterations one (1) original and one (1) copy of the documents comprising the bid and clearly mark them "ORIGINAL" and 'COPY" as appropriate. In the event of discrepancy between them, the original shall prevail.

18.5 The original and the copy of the bid shall be typed or written in indelible ink (in the case of copies, Photostats are also acceptable) and shall be signed by a person or persons duly authorized to sign on behalf of the bidder. This authorization shall consist of a written confirmation as specified in the Bidding Data and shall be attached to the bid. The name and position held by each person signing the authorization must be typed or printed below the signature. All pages of the Bid, except for un-amended printed literature, shall be signed or initiated by the person signing the bid.

18.6 The bid shall contain no alterations, omissions or additions, except to comply with instructions issued by the Employer, or as are necessary to correct errors made by the bidder, in which case such corrections shall be initialed by the person or persons signing the bid.

18.7 Bidders shall indicate in the space provided in the Form of Bid their full and proper addresses at which notices may be legally served on them and to which all correspondence in connection with their bids and the Contract is to be sent.

18.8 Bidders should retain a copy of the Bidding Documents as their file copy.

D. SUBMISSION OF BIDS

IB.19 Sealing and Marking of Bids

19.1 Each bidder shall submit his bid as under:

(a) ORIGINAL and the copy of the Bid shall be separately sealed and Putin separate envelopes and marked as such.

(b) The envelopes containing the ORIGINAL and copy will be put in one sealed envelope and addressed / identified as given in Sub- Clause 19.2 hereof.

(c) **The Technical Bid should comprise of documents listed in 11.1 (A) of Bidding Data & the Price Bid should comprise of documents listed in 11.1 (B) of Bidding Data which shall be placed in separate envelops in accordance with 11.1.**

19.2 The inner and outer envelopes shall:

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(a) Be addressed to the Employer at the address provided in the Bidding Data;
(b) Bear the name and identification number of the tender as defined in the Bidding Data; and
(c) Provide a warning not to open before the time and date for bid opening, as specified in the Bidding Data.

19.3 In addition to the identification required in Sub- Clause 19.2 hereof, the inner envelope shall indicate the name and address of the bidder to enable the bid to be returned unopened in case it is declared "late" pursuant to Clause IB.21.

19.4 If the outer envelope is not sealed and marked as above, the Employer will assume no responsibility for the misplacement or premature opening of the Bid.

IB.20 Deadline for Submission of Bids

20.1 (a) Bids must be received by the Employer at the address specified no later than the time and date stipulated in the Bidding Data or such extended deadline as the Employer has duly notified in accordance with Clause IB.9.
(b) Bids with charges payable will not be accepted, nor will arrangements be undertaken to collect the bids from any delivery point other than that specified above. Bidders shall bear all expenses incurred in the preparation and delivery of bids. No claims will be entertained for refund of such expenses.
(c) Where delivery of a bid is by mail and the bidder wishes to receive an acknowledgment of receipt of such bid, he shall make a request for such acknowledgment in a separate letter attached to but not included in the sealed bid package.
(d) Upon request, acknowledgment of receipt of bids will be provided to those making delivery in person or by messenger.

20.2 The Employer may, at his discretion, extend the deadline for submission of bids by issuing an amendment in accordance with Clause IB.9, in which case all rights and obligations of the Employer and the bidders previously subject to the original deadline will thereafter be subject to the deadline as extended.

IB.21 Late Bids

21.1 (a) **Any bid received by the Employer after the deadline for submission of bids prescribed in Clause IB.20 will be returned unopened to such bidder.**
(b) Delays in the mail, delays of person in transit, or delivery of a bid to the wrong office shall not be accepted as an excuse for failure to deliver a bid at the proper place and time. It shall be the bidder's responsibility to determine the manner in which timely delivery of his bid will be accomplished either in person, by messenger or by mail.

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IB.22 Modification, Substitution and Withdrawal of Bids

22.1 Any bidder may modify**,** substitute or withdraw his bid after bid submission provided that the modification, substitution or written notice of withdrawal is received by the Employer prior to the deadline for submission of bids.

22.2 The modification, substitution, or notice for withdrawal of any bid shall be prepared, sealed, marked and delivered in accordance with the provisions of Clause IB.19 with the outer and inner envelopes additionally marked "MODIFICATION", "SUBSTITUTION" or "WITHDRAWAL" as Appropriate.

22.3 No bid may be modified by a bidder after the deadline for submission of bids except in accordance with Sub-Clauses 22.1 and 27.2.

22.4 Withdrawal of a bid during the interval between the deadline for submission of bids and the expiration of the period of bid validity specified in the Form of Bid may result in forfeiture of the Bid Security in pursuance to Clause IB.15.

E. BID OPENING AND EVALUATION FOR SINGLE STAGE TWO ENVELOPE BIDDING PROCEDURE

IB.23 Bid Opening

23.1 The Employer will open the Technical Bids in public at the address, date and time specified in the Bidding Data in the presence of Bidders' designated representatives and anyone who choose to attend. The Price Bid will remain unopened and will be held in custody of the Employer until the specified time of their opening.

23.2 First, envelopes marked "WITHDRAWALS" shall be opened and read out and the envelope with the corresponding bid shall not be opened, but returned to the Bidder. No bid withdrawals shall be permitted unless the corresponding withdrawal Notice contains a valid authorization to request the withdrawal and is read out at bid opening.

23.3 Second, outer envelopes marked "SUBSITUTION" shall be opened. The inner envelopes containing the substitution Technical Bid and/or Substitution Price Bid shall be exchanged for the corresponding envelopes being substituted, which are to be returned to the Bidder unopened. Only the Substitution Technical Bid, if any, shall be opened, read out, and recorded. Substitution Price Bid will remain unopened in accordance with IB 23.1. No envelope shall be substituted unless the corresponding.

23.4 Next, outer envelopes marked "MODIFICATION" shall be opened. No Technical Bid and /or Price Bid shall be modified unless the corresponding Modification Notice contains a valid authorization to request the modification and is read out and recorded at the opening of Technical Bids. Only the Technical Bids, both Original as well as Modification, are to be opened, readout, and recorded in accordance with IB 23.1. The Bidders'

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representatives who are present shall be requested to sign the record. The omission of a Bidders signature on the record shall not invalidate the contents and effect of the record. A copy of the record shall be distributed to all Bidders.

IB.24 Process to be Confidential

24.1 Information relating to the examination, clarification, evaluation and comparison of bid and recommendations for the award of a contract shall not be disclosed to bidders or any other person not officially concerned with such process before the announcement of bid evaluation report which shall be done at least fifteen (15) days prior to issue of Letter of Acceptance. The announcement to all Bidders will include table(s) comprising read out prices, discounted prices, price adjustments made, final evaluated prices and recommendations against all the bids evaluated. Any effort by a bidder to influence the Employer's processing of bids or award decisions may result in the rejection of such bidder's bid. However, any bidder feeling aggrieved may lodge a written complaint concerning his grievances within seven (07) days of announcement of technical evaluation report and five (05) days after issuance of final evaluation report; however mere fact of lodging a complaint shall not warrant suspension of the procurement process.

IB.25 Clarification of Bids

25.1 To assist in the examination, evaluation and comparison of bids, the Employer may, at his discretion, ask any bidder for clarification of his bid. The request for clarification and the response shall be in writing but no change in the price or substance of the bid shall be sought, offered or permitted except as required to confirm the correction of arithmetic errors discovered by the Employer in the evaluation of the bids in accordance with Clause IB.28.

25.2 If a bidder does not provide clarifications of its Bid by the date and time set in the Employer's request for clarification, its bid may be rejected.

IB.26 Examination of Bids and Determination of Responsiveness

26.1 Prior to the detailed evaluation of bids, the Employer will determine whether each bid is substantially responsive to the requirements of the Bidding Documents.

26.2 A substantially responsive bid is one which (i) meets the eligibility and qualification criteria under the Bidding Documents; (ii) has been properly signed; (iii) is accompanied by the required Bid Security; and (iv) conforms to all the terms, conditions and specifications of the Bidding Documents, without material deviation or reservation. A material deviation or reservation is one (i) which affect in any substantial way the scope, quality or performance of the Works; (ii) which limits in any substantial way, inconsistent with the Bidding Documents, the Employer's rights or the bidder's obligations under the Contract; or (iii) adoption/rectification whereof would affect unfairly the competitive position of other bidders presenting substantially responsive bids.

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